laws within their respective jurisdictions and should not encroach upon the other's sphere. If it encroaches, then the validity of the law enacted by it is determined by applying the doctrine of pith and substance.

According to this doctrine, a law in question must be looked into as an organic whole and not as a mere collection of sections, for determining the true nature and character of the impugned law i.e., the pith and substance of the law. If it is found that the pith and substance of the impugned law relates to the subject within the domain of the Legislature enacting the law, then the law would be held valid even though it incidentally encroaches on subjects which have been assigned to another Legislature. Further, for applying the doctrine, one must have regard (a) to the enactment as a whole, (b) to its main objects, and (c) to the scope and effect of its provisions.

2. Rationale of the Doctrine

The doctrine of pith and substance was evolved by the Privy Council when it determined appeals from Canada or Australia involving the question of legislative competence of the Centre, or the states in those federations. Later, this doctrine came to be established in India where it derives its genesis from the approach adopted by the courts including the Privy Council in dealing with controversies arising in other federations.

While explaining the rationale of the doctrine, the Supreme Court made the following observation[27]:

"It must be remembered that we are construing a federal Constitution. It is of the essence of such a Constitution that there should be a distribution of the legislative powers of the Federation between the Centre and the Provinces. The scheme of distribution has varied with different Constitutions, but even when the Constitution enumerates elaborately the topics on which the Centre and the States could legislate, some overlapping of the fields of legislation is inevitable".

3. Principles of the Doctrine

In the pre-Constitution period, the doctrine of pith and substance was applied by the Privy Council in *Prafulla Kumar* case[28] (1947). This case involved the interpretation of the division of powers under the Government of India Act, 1935. In this case, the validity of the Bengal Money Lenders Act, 1946 was challenged on the ground that it was ultra-vires the Bengal Legislature in so far as it related to "promissory notes" which was a central subject. The Calcutta High Court held the Act to be intra-vires while the Federal Court, on appeal, reversed it. Finally, the Privy Council held that the Act was, in pith and substance, a law in respect of "money lending" and "money lenders"—a state subject and hence, was valid even though it incidentally encroached on "promissory notes".

In the above case, the Privy Council laid down the following principles of the doctrine of pith and substance:

1. It is not possible to make a clear-cut demarcation between the powers of the Federal Legislature and the Provincial Legislature. The powers are bound to overlap from to time. where they overlap, the questions must be asked are :

(a) What, in pith and substance, is the effect of the enactment of which complaint is made?

(b) In what list is its true nature and character to be found?